

An Act

ENROLLED HOUSE
BILL NO. 3980

By: Caldwell (Trey) and Moore
of the House

and

Gollihare of the Senate

An Act relating to district attorneys; creating the Rural District Attorney Loan Repayment Assistance Program; providing short title; defining terms; authorizing the District Attorneys Council to direct certain payments under certain conditions; providing for exceptions; providing for selection committee for jurisdiction participation; providing eligibility requirements; construing provisions; creating the Rural District Attorney Loan Repayment Assistance Program Revolving Fund; specifying source of fund; providing for expenditures; providing purpose of fund; providing for codification; and providing an effective date.

SUBJECT: District attorneys

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 215.42a of Title 19, unless there is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Rural District Attorney Loan Repayment Assistance Program".

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 215.42b of Title 19, unless there is created a duplication in numbering, reads as follows:

As used in the Rural District Attorney Loan Repayment Program:

1. "Eligible employee" means a person who is employed full time as an assistant district attorney in the State of Oklahoma and who has incurred a debt pursuant to the obligations under a qualified education loan;

2. "Qualified education loan" means a debt owed by the eligible employee to any private or public entity for which repayment is legally required over a period greater than one (1) year, the proceeds of which were used to pay tuition, fees, or other education expenses, including books and materials, to an institution of higher learning, including any private college or university, for coursework leading to an undergraduate or graduate degree; and

3. "Required payback period" means two thousand (2,000) hours of full-time employment as an assistant district attorney in a designated high-need jurisdiction for each Five Thousand Dollars (\$5,000.00) of qualified education loan expenses paid pursuant to this act.

SECTION 3. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 215.42c of Title 19, unless there is created a duplication in numbering, reads as follows:

A. The District Attorneys Council, subject to available funding, may make direct payments not to exceed Five Thousand Dollars (\$5,000.00) in any twelve-month period, on behalf of an eligible employee to any private or public entity for which a qualified education loan expense is owed by the eligible employee.

B. With regards to payments made under this section, the District Attorneys Council shall not make cumulative payments on behalf of any single eligible employee that total an amount greater than Fifty Thousand Dollars (\$50,000.00).

C. The provisions of this section shall only be applicable to qualified education loan obligations incurred prior to employment as an assistant district attorney or qualified education loan obligations associated with education directly related to employment incurred during such employment.

D. Payments made pursuant to this section shall be made directly to the loan service provider or lending institution.

SECTION 4. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 215.42d of Title 19, unless there is created a duplication in numbering, reads as follows:

A. If an eligible employee on whose behalf payment has been made pursuant to this act terminates services in a designated high-need jurisdiction prior to the expiration of the required payback period, the employee shall be required to reimburse the payor entity for the amount of the qualified education loan expense paid.

B. If the employee performs less than the number of hours of service required for the full amount of the expenses paid, reimbursement shall be made on a pro rata basis, based upon the actual number of hours of service performed.

SECTION 5. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 215.42e of Title 19, unless there is created a duplication in numbering, reads as follows:

A. Eligibility for participation in the Rural District Attorney Loan Repayment Assistance Program shall be determined by a selection committee composed of representatives of the district attorneys, in coordination with the District Attorneys Council.

B. The committee shall designate high-need jurisdictions based on factors including, but not limited to:

1. Population size;
2. Remoteness or rural characteristic of the district;
3. Length of vacancies or turnover rate;
4. Distance to institutions of higher education; and
5. Other workforce requirement and retention considerations.

C. Eligible employees shall submit documentation of qualified education loan obligations and payments schedules annually, in a manner prescribed by the committee.

SECTION 6. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 215.42f of Title 19, unless there is created a duplication in numbering, reads as follows:

Nothing in this act shall be construed to create a vested right to loan assistance payments. Loan assistance payments are subject to availability of funds and continued eligibility as determined by the administering committee.

SECTION 7. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 215.42g of Title 19, unless there is created a duplication in numbering, reads as follows:

There is hereby created in the State Treasury a revolving fund for the District Attorneys Council to be designated the "Rural District Attorney Loan Repayment Assistance Program Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies directed for deposit to the fund by law. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the District Attorneys Council for the purpose of direct payments for qualified education loan payments on behalf of eligible employees. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the Director of the Office of Management and Enterprise Services for approval and payment.

SECTION 8. This act shall become effective November 1, 2026.

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 27th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____